

JACKSON, J., dissenting

check on Presidents who would use their official powers to commit crimes with impunity while in office.

So, one might ask, what remains of accountability for Presidents under law? With today's paradigm shift, the majority leaves in place only the chance that this Court might someday determine that the criminal conduct in question was an "unofficial" act, or that the Government will somehow rebut the presumption of immunity that applies to a President's official acts, such that criminal consequences might attach. But with the parameters of official and unofficial conduct unknown, I think it highly unlikely that a sitting President would feel constrained by these remote possibilities.

All of this leads me to ponder why, exactly, has the majority concluded that an indeterminate "core"-versus-"official"-versus-"unofficial" line-drawing exercise is the better way to address potential criminal acts of a President? Could it be that the majority believes the obviously grave dangers of shifting from the individual accountability model to the Presidential accountability model might nevertheless be offset by the great benefits of doing so? Cf. J. Bentham, *A Fragment on Government and an Introduction to the Principles of Morals and Legislation* 3 (W. Harrison ed. 1948) (arguing that acts can be justified by the maxim that "it is the greatest happiness of the greatest number that is the measure of right and wrong" (emphasis deleted)).

Some of the majority's analysis suggests as much. As far as I can tell, the majority is mostly concerned that, without immunity, Presidents might "be chilled from taking the 'bold and unhesitating action' required of an independent Executive." *Ante*, at 613. The Court's opinion candidly laments that application of the law to Presidents might not be evenhanded, and that, as a result, Presidents might be less "'vigorous' and 'energetic'" as executive officers. *Ante*, at 610; accord, *ante*, at 639. But that concern ignores (or rejects) the foundational principles upon which the traditional individual